

## CHAPTER 1 Historical Background

The Britishers came to India in 1608 as traders, in the form of the East India Company, which had the exclusive right of trading in India under a charter granted by Queen Elizabeth I in 1600. In 1765, the Company, which till then had purely trading functions, obtained the 'diwani' (i.e., rights over revenue and civil justice) of Bengal, Bihar and Orissa<sup>1</sup>. This started its career as a territorial power. In 1858, in the wake of the 'sepoy mutiny', the British Crown assumed direct responsibility for the governance of India. This rule continued until India was granted independence on August 15, 1947.

With Independence came the need for a Constitution. Hence, a Constituent Assembly was formed for this purpose in 1946 and on January 26, 1950, the Constitution came into being. However, various features of the Indian Constitution and polity have their roots in the British rule. There were certain events in the British rule that laid down the legal framework for the organisation and functioning of government and administration in British India. These events have greatly influenced our constitution and polity. They are explained here in a chronological order under two major headings:

1. The Company Rule (1773–1858)
2. The Crown Rule (1858–1947)

### THE COMPANY RULE (1773–1858)



#### Regulating Act of 1773

This act was of great constitutional importance as (a) it was the first step taken by the British Government to control and regulate the affairs of the East India Company in India; (b) it recognised, for the first time, the political and administrative functions of the Company; and (c) it laid the foundations of central administration in India.

#### *The features of this Act were as follows:*

1. It designated the Governor of Bengal as the 'Governor-General of Bengal' and created an Executive Council of four members to assist him. The first such Governor-General was Lord Warren Hastings.
2. It made the Governors of Bombay and Madras presidencies subordinate to the Governor-General of Bengal, unlike earlier, when the three presidencies were independent of one another.
3. It provided for the establishment of a Supreme Court at Calcutta (1774) comprising one chief justice and three other judges.
4. It prohibited the servants of the Company from engaging in any private trade or accepting presents or bribes from the 'natives'.
5. It strengthened the control of the British Government over the Company by requiring the Court of Directors (governing body of the Company) to report on its revenue, civil, and military affairs in India.



### **Amending Act of 1781**

In a bid to rectify the defects of the Regulating Act of 1773, the British Parliament passed the Amending Act of 1781, also known as the Act of Settlement.

#### ***The features of this Act were as follows:***

1. It exempted the Governor-General and the Council from the jurisdiction of the Supreme Court for the acts carried out by them in their official capacity. Similarly, it also exempted the servants of the Company from the jurisdiction of the Supreme Court for their official actions.
2. It excluded the revenue matters and the matters arising in the collection of revenue from the jurisdiction of the Supreme Court.
3. It provided that the Supreme Court was to have jurisdiction over all the inhabitants of Calcutta. It also required the Court to administer the personal law of the defendants i.e., Hindus were to be tried according to the Hindu law and Muslims were to be tried according to the Mohammedan law.
4. It laid down that the appeals from the Provincial Courts could be taken to the Governor-General-in-Council and not to the Supreme Court.
5. It empowered the Governor-General-in-Council to frame regulations for the Provincial Courts and Councils.



### **Pitt's India Act of 1784**

The next important act was the Pitt's India Act<sup>2</sup> of 1784.

#### ***The features of this Act were as follows:***

1. It distinguished between the commercial and political functions of the Company.
2. It allowed the Court of Directors to manage the commercial affairs, but created a new body called the Board of Control to manage the political affairs. Thus, it established a system of double government.
3. It empowered the Board of Control to supervise and direct all operations of the civil and military government or revenues of the British possessions in India.

Thus, the act was significant for two reasons: first, the Company's territories in India were for the first time called the 'British possessions in India'; and second, the British Government was given the supreme control over Company's affairs and its administration in India.



### **Act of 1786**

In 1786, Lord Cornwallis was appointed as the Governor-General of Bengal. He placed two demands to accept that post, viz.,

1. He should be given power to override the decision of his council in special cases.
2. He would also be the Commander-in-Chief.

Accordingly, the Act of 1786 was enacted to make both the provisions.



### **Charter Act of 1793**

***The features of this Act were as follows:***

1. It extended the overriding power given to Lord Cornwallis over his council, to all future Governor-Generals and Governors of Presidencies.
2. It gave the Governor-General more powers and control over the governments of the subordinate Presidencies of Bombay and Madras.
3. It extended the trade monopoly of the Company in India for a period of another twenty years.
4. It provided that the Commander-in-Chief was not to be a member of the Governor-General's council, unless he was so appointed.
5. It laid down that the members of the Board of Control and their staff were, henceforth, to be paid out of the Indian revenues.



### **Charter Act of 1813**

***The features of this Act were as follows:***

1. It abolished the trade monopoly of the Company in India i.e., the Indian trade was thrown open to all British merchants. However, it continued the monopoly of the Company over trade in tea and trade with China.
2. It asserted the sovereignty of the British Crown over the Company's territories in India.
3. It allowed the Christian missionaries to come to India for the purpose of enlightening the people.
4. It provided for the spread of western education among the inhabitants of the British territories in India.
5. It authorised the Local Governments in India to impose taxes on persons. They could also punish the persons for not paying taxes.



### **Charter Act of 1833**

This Act was the final step towards centralisation in British India.

***The features of this Act were as follows:***

1. It made the Governor-General of Bengal as the Governor-General of India and vested in him all civil and military powers. Thus, the act vested, for the first time, the Government of India with authority over the entire territorial area possessed by the British in India. Lord William Bentick was the first Governor-General of India.
2. It deprived the Governor of Bombay and Madras of their legislative powers. The Governor-General of India was given exclusive legislative powers for the entirety of British India. The laws made under the previous acts were called as **Regulations**, while laws made under this act were called as **Acts**.
3. It ended the activities of the East India Company as a commercial body, which became a purely administrative body. It provided that the Company's territories in India were held by it 'in trust for His Majesty, His heirs and successors'.
4. The Charter Act of 1833 attempted to introduce a system of open competition for selection of civil servants and stated that the Indians should not be debarred from holding any place, office and employment under the Company. However, this provision was negated after opposition from the Court of Directors.



### **Charter Act of 1853**

This was the last of the series of Charter Acts passed by the British Parliament between 1793 and 1853. It was a significant constitutional landmark.

#### ***The features of this Act were as follows:***

1. It separated, for the first time, the legislative and executive functions of the Governor-General's council. It provided for the addition of six new members called legislative councillors to the council. In other words, it established a separate Governor-General's legislative council which came to be known as the Indian (Central) Legislative Council. This legislative wing of the council functioned as a mini-Parliament, adopting the same procedures as the British Parliament. Thus, legislation, for the first time, was treated as a special function of the government, requiring special machinery and special process.
2. It introduced an open competition system of selection and recruitment of civil servants. The covenanted civil service<sup>3</sup> was, thus, thrown open to the Indians also. Accordingly, the Macaulay Committee (the Committee on the Indian Civil Service) was appointed in 1854.
3. It extended the Company's rule and allowed it to retain the possession of Indian territories on trust for the British Crown. But, it did not specify any particular period, unlike the previous Charters. This was a clear indication that the Company's rule could be terminated at any time the Parliament liked.
4. It introduced, for the first time, local representation in the Indian (Central) Legislative Council. Of the six new legislative members of the Governor-General's council, four members were appointed by the local (provincial) governments of Madras, Bombay, Bengal and Agra.

### **THE CROWN RULE (1858–1947)**



### **Government of India Act of 1858**

This significant Act was enacted in the wake of the Revolt of 1857—also known as the First War of Independence or the ‘sepoy mutiny’. The act known as the **Act for the Good Government of India**, abolished the East India Company, and transferred the powers of Government, territories and revenues to the British Crown.

#### ***The features of this Act were as follows:***

1. It provided that India, henceforth, was to be governed by, and in the name of, Her Majesty. It changed the designation of the Governor-General of India to that of Viceroy of India. He (Viceroy) was the direct representative of the British Crown in India. Lord Canning, thus, became the first Viceroy of India.
2. It ended the system of double Government by abolishing the Board of Control and Court of Directors.
3. It created a new office, Secretary of State for India, vested with complete authority and control over Indian administration. The secretary of state was a member of the British Cabinet and was responsible ultimately to the British Parliament.
4. It established a 15-member council of India to assist the Secretary of State for India. The council was an advisory body. The secretary of state was made the Chairman of the council.
5. It constituted the Secretary of State-in-Council as a body corporate, capable of suing and being sued in India and in England.

It must be noted here that “the act in no substantial way altered the system of government that prevailed in India but confined itself to the improvement of the machinery by which the Indian Government was to be superintended and controlled in England”<sup>4</sup>.



### **Indian Councils Act of 1861**

After the great revolt of 1857, the British Government felt the necessity of seeking cooperation of the Indians in the administration of their country. In pursuance of this policy of association, three acts were enacted by the British Parliament in 1861, 1892 and 1909. The Indian Councils Act of 1861 is an important landmark in the constitutional and political history of India.

#### ***The features of this Act were as follows:***

1. It made a beginning of the representative institutions by associating Indians with the law-making process. It, thus, provided that the Viceroy should nominate some Indians as non-official members of his expanded council. In 1862, Lord Canning, the then Viceroy, nominated three Indians to his legislative council—the Raja of Benaras, the Maharaja of Patiala and Sir Dinkar Rao.
2. It initiated the process of decentralisation by restoring the legislative powers to the Bombay and Madras Presidencies. It, thus, reversed the centralising tendency that started from the Regulating Act of 1773 and reached its climax under the Charter Act of 1833. This policy of

legislative devolution resulted in the grant of almost complete internal autonomy to the provinces in 1937.

3. It also provided for the establishment of new legislative councils for Bengal, North-western Provinces and Punjab, which were established in 1862, 1886 and 1897, respectively.
4. It empowered the Viceroy to make rules and orders for the more convenient transaction of business in the council. It also gave a recognition to the 'portfolio' system, introduced by Lord Canning in 1859. Under this, a member of the viceroy's council was made in-charge of one or more departments of the Government and was authorised to issue final orders on behalf of the council on matters of his department(s).
5. It empowered the Viceroy to issue ordinances, without the concurrence of the legislative council, during an emergency. The life of such an ordinance was six months.



### **Indian Councils Act of 1892**

***The features of this Act were as follows:***

1. It increased the number of additional (non-official) members in the Central and provincial legislative councils, but maintained the official majority in them.
2. It increased the functions of legislative councils and gave them the power of discussing the budget<sup>5</sup> and addressing questions to the executive.
3. It provided for the nomination of some non-official members of the (a) Central Legislative Council by the Viceroy on the recommendation of the provincial legislative councils and the Bengal Chamber of Commerce, and (b) that of the provincial legislative councils by the Governors on the recommendation of the district boards, municipalities, universities, trade associations, zamindars and chambers.

"The act made a limited and indirect provision for the use of election in filling up some of the non-official seats both in the Central and provincial legislative councils. The word **election** was, however, not used in the Act. The process was described as nomination made on the recommendation of certain bodies"<sup>6</sup>.



### **Indian Councils Act of 1909**

This Act is also known as Morley-Minto Reforms (Lord Morley was the then Secretary of State for India and Lord Minto was the then viceroy of India).

***The features of this Act were as follows:***

1. It considerably increased the size of the legislative councils, both Central and Provincial. The number of members in the Central legislative council was raised from 16 to 60. The number of members in the provincial legislative councils was not uniform.
2. It retained official majority in the Central legislative council, but allowed the provincial legislative councils to have non-official majority.

3. It enlarged the deliberative functions of the legislative councils at both levels. For example, members were allowed to ask supplementary questions, move resolutions on the budget and so on.
4. It provided (for the first time) for the association of Indians with the executive councils of the viceroy and Governors. **Satyendra Prasad Sinha** became the first Indian to join the viceroy's executive council. He was appointed as the Law Member.
5. It introduced a system of communal representation for Muslims by accepting the concept of 'separate electorate'. Under this, the Muslim members were to be elected only by Muslim voters. Thus, the Act 'legalised communalism' and Lord Minto came to be known as the **Father of Communal Electorate**.
6. It also provided for the separate representation of presidency corporations, chambers of commerce, universities and zamindars.



### **Government of India Act of 1919**

On August 20, 1917, the British Government declared, for the first time, that its objective was the gradual introduction of responsible Government in India<sup>7</sup>.

The Government of India Act of 1919 was thus enacted, which came into force in 1921. This Act is also known as Montagu-Chelmsford Reforms (Montagu was the Secretary of State for India and Lord Chelmsford was the Viceroy of India).

#### ***The features of this Act were as follows:***

1. It provided for the classification of all the subjects of administration into two categories, namely, the central subjects and the provincial subjects. This classification was done by the "Devolution Rules" framed under the Act. These rules facilitated the delegation of authority from the centre to the provinces. In this way, the Act relaxed the central control over the provinces. The central and provincial legislatures were authorised to make laws on their respective list of subjects. However, the structure of government continued to be centralised and unitary.
2. It further divided the provincial subjects into two parts—transferred and reserved. The transferred subjects included public health, education, local self-government, agriculture etc. while the reserved subjects included police, administration of justice, prisons, land revenue, finance etc. The **transferred subjects** were to be administered by the Governor with the aid of Ministers responsible to the legislative council. The **reserved subjects**, on the other hand, were to be administered by the Governor and his executive council without being responsible to the legislative council. This dual scheme of governance was known as 'dyarchy'—a term derived from the Greek word *di-arche* which means double rule. However, this experiment was largely unsuccessful.
3. It introduced, for the first time, bicameralism and direct elections in the country. Thus, the Indian legislative council was replaced by a bicameral legislature consisting of an Upper House (Council of State) and a Lower House (Legislative Assembly). The majority of members of both the Houses were chosen by direct election.

4. It required that the three of the six members of the Viceroy's executive Council (other than the Commander-in-Chief) were to be Indian.
5. It extended the principle of communal representation by providing separate electorates for Sikhs, Indian Christians, Anglo-Indians and Europeans.
6. It granted franchise to a limited number of people on the basis of property, tax or other qualifications.
7. It created a new office of the High Commissioner for India in London and transferred to him some of the functions hitherto performed by the Secretary of State for India.
8. It provided for the establishment of a public service commission. Hence, a Central Public Service Commission was set up in 1926 for recruiting civil servants<sup>8</sup>.
9. It separated, for the first time, provincial budgets from the Central budget and authorised the provincial legislatures to enact their budgets.
10. It provided for the appointment of a statutory commission to inquire into and report on its working after ten years of its coming into force.
11. It proposed the establishment of a Chamber of Princes (also known as Narendra Mandal). The chamber was inaugurated in 1921. It consisted of 120 members i.e., Princes of 108 states and 12 representatives of other states. It was headed by the Viceroy (Governor-General). It facilitated the consultation and discussion on the matters of common interest.

**Simon Commission** In November 1927 (i.e., 2 years before the schedule), the British Government announced the appointment of a seven-member statutory commission under the chairmanship of Sir John Simon to report on the condition of India under its new Constitution. All the members of the commission were British and hence, all the parties boycotted the commission. The commission submitted its report in 1930 and recommended the abolition of dyarchy, extension of responsible Government in the provinces, establishment of a federation of British India and princely states, continuation of communal electorate and so on. To consider the proposals of the commission, the British Government convened three round table conferences of the representatives of the British Government, British India and Indian princely states. On the basis of these discussions, a 'White Paper on Constitutional Reforms' was prepared and submitted for the consideration of the Joint Select Committee of the British Parliament. The recommendations of this committee were incorporated (with certain changes) in the next Government of India Act of 1935.

**Communal Award** In August 1932, Ramsay MacDonald, the British Prime Minister, announced a scheme of representation of the minorities, which came to be known as the Communal Award. The award not only continued separate electorates for the Muslims, Sikhs, Indian Christians, Anglo-Indians and Europeans but also extended it to the depressed classes (Scheduled Castes). Gandhiji was distressed over this extension of the principle of communal representation to the depressed classes and undertook a fast unto death in Yerawada Jail (Poona) to get the award modified. At last, there was an agreement between the Congress and Dr. B.R. Ambedkar, the leader of the depressed classes. The agreement, known as the Poona Pact, retained the Hindu joint electorate and gave reserved seats to the depressed classes.

The British Government accepted the Poona Pact and modified the Communal Award in respect to the depressed classes (Scheduled Castes). This means that the provisions of separate electorates for the depressed classes were dropped from the scheme of representation contained in the Communal Award. Subsequently, the provisions of the Poona Pact were incorporated in the next Government of India Act of 1935. In other words, the composition of the central and provincial legislatures under the 1935 Act was based on this modified Communal Award.



### **Government of India Act of 1935**

The Act marked a second milestone towards a completely responsible government in India. It was a lengthy and detailed document having 321 Sections and 10 Schedules.

#### ***The features of this Act were as follows:***

1. It provided for the establishment of an All-India Federation consisting of provinces and princely states as units. The Act divided the powers between the Centre and units in terms of three lists—**Federal List** (for Centre, with 59 items), **Provincial List** (for provinces, with 54 items) and the Concurrent List (for both, with 36 items). Residuary powers were given to the Viceroy (Governor-General). However, the federation never came into being as the princely states did not join it.
2. It abolished dyarchy in the provinces and introduced 'provincial autonomy' in its place. The provinces were allowed to act as autonomous units of administration in their defined spheres. Moreover, the Act introduced responsible Governments in provinces, that is, the Governor was required to act with the advice of ministers responsible to the provincial legislature. This came into effect in 1937 and was discontinued in 1939.
3. It provided for the adoption of dyarchy at the Centre. Consequently, the federal subjects were divided into reserved subjects and transferred subjects. However, this provision of the Act did not come into operation at all.
4. It introduced bicameralism in six out of eleven provinces. Thus, the legislatures of Bengal, Bombay, Madras, Bihar, Assam and the United Provinces were made bicameral consisting of a legislative council (upper house) and a legislative assembly (lower house). However, many restrictions were placed on them.
5. It reserved a certain number of general seats for the depressed classes (Scheduled Castes). It also extended the special representation to women and labour (workers).
6. It abolished the Council of India, established by the Government of India Act of 1858. The secretary of state for India was provided with a team of advisors.
7. It extended franchise. About 14 per cent of the total population got the voting right.
8. It provided for the establishment of a Reserve Bank of India to control the currency and credit of the country.

9. It provided for the establishment of not only a Federal Public Service Commission, but also a Provincial Public Service Commission and Joint Public Service Commission for two or more provinces.
10. It provided for the establishment of a Federal Court, which was set up in 1937.
11. It separated Burma (now Myanmar) from India.
12. It created two new provinces of Orissa and Sind.
13. It provided for safeguards to protect the interests of minorities.
14. It provided for the establishment of a Federal Railway Authority to look after the administration of railways.
15. It provided for the appointment of an Auditor-General of India to audit the accounts of the federation and the provinces.



#### **Indian Independence Act of 1947**

On February 20, 1947, the British Prime Minister Clement Atlee declared that the British rule in India would end by June 30, 1948; after which the power would be transferred to responsible Indian hands. This announcement was followed by the agitation by the Muslim League demanding partition of the country. Again on June 3, 1947, the British Government made it clear that any Constitution framed by the Constituent Assembly of India (formed in 1946) cannot apply to those parts of the country which were unwilling to accept it. On the same day (June 3, 1947), Lord Mountbatten, the Viceroy of India, put forth the partition plan, known as the **Mountbatten Plan**. The plan was accepted by the Congress and the Muslim League. Immediate effect was given to the plan by enacting the Indian Independence Act<sup>9</sup> (1947).

#### ***The features of this Act were as follows:***

1. It ended the British rule in India and declared India as an independent state from August 15, 1947.
2. It provided for the partition of India and creation of two independent dominions of India and Pakistan with the right to secede from the British Commonwealth.
3. It abolished the office of Viceroy and provided, for each dominion, a Governor-General, who was to be appointed by the British King on the advice of the dominion cabinet. His Majesty's Government in Britain was to have no responsibility with respect to the Government of India or Pakistan.
4. It empowered the Constituent Assemblies of the two dominions to frame and adopt any constitution for their respective nations and to repeal any act of the British Parliament, including the Independence act itself.
5. It empowered the Constituent Assemblies of both the dominions to legislate for their respective territories till the new constitutions were drafted and enforced. No Act of the British Parliament

passed after August 15, 1947 was to extend to either of the new dominions unless it was extended thereto by a law of the legislature of the dominion.

6. It abolished the office of the Secretary of State for India and transferred his functions to the Secretary of State for Commonwealth Affairs.
7. It proclaimed the lapse of British paramountcy over the Indian princely states and treaty relations with tribal areas from August 15, 1947.
8. It granted freedom to the Indian princely states either to join the Dominion of India or Dominion of Pakistan or to remain independent.
9. It provided for the governance of each of the dominions and the provinces by the Government of India Act of 1935, till the new Constitutions were framed. The dominions were, however, authorised to make modifications in the Act.
10. It deprived the British Monarch of his right to veto bills or ask for reservation of certain bills for his approval. But, this right was reserved for the Governor-General. The Governor-General would have full power to assent to any bill in the name of His Majesty.
11. It designated the Governor-General of India and the provincial governors as constitutional (nominal) heads of the states. They were made to act on the advice of the respective council of ministers in all matters.
12. It dropped the title of Emperor of India from the royal titles of the King of England.
13. It discontinued the appointment to civil services and reservation of posts by the secretary of state for India. The members of the civil services appointed before August 15, 1947 would continue to enjoy all benefits that they were entitled to till that time.

At the stroke of midnight of 14–15 August, 1947, the British rule came to an end and power was transferred to the two new independent Dominions of India and Pakistan<sup>10</sup>. Lord Mountbatten became the first Governor-General of the new Dominion of India. He swore in Jawaharlal Nehru as the first Prime Minister of independent India. The Constituent Assembly of India formed in 1946 became the Parliament of the Indian Dominion.

The members of both, the Interim Government (1946) and the First Cabinet of Independent India (1947), are mentioned in [Tables 1.1](#) and [1.2](#) respectively.

**Table 1.1** Interim Government (1946)

| Sl. No. | Members          | Portfolios Held                                                            |
|---------|------------------|----------------------------------------------------------------------------|
| 1.      | Jawaharlal Nehru | Vice-President of the Council; External Affairs and Commonwealth Relations |

| Sl. No. | Members                  | Portfolios Held                    |
|---------|--------------------------|------------------------------------|
| 2.      | Sardar Vallabhbhai Patel | Home, Information and Broadcasting |
| 3.      | Dr. Rajendra Prasad      | Food and Agriculture               |
| 4.      | Dr. John Mathai          | Industries and Supplies            |
| 5.      | Jagjivan Ram             | Labour                             |
| 6.      | Sardar Baldev Singh      | Defence                            |
| 7.      | C.H. Bhabha              | Works, Mines and Power             |
| 8.      | Liaquat Ali Khan         | Finance                            |
| 9.      | Abdur Rab Nishtar        | Posts and Air                      |
| 10.     | Asaf Ali                 | Railways and Transport             |
| 11.     | C. Rajagopalachari       | Education and Arts                 |
| 12.     | I.I. Chundrigar          | Commerce                           |
| 13.     | Ghaznafar Ali Khan       | Health                             |
| 14.     | Jogendra Nath Mandal     | Law                                |

**Note:** The members of the Interim Government were members of the Viceroy's Executive Council. The Viceroy continued to be the head of the Council. But, Jawaharlal Nehru was designated as the Vice-President of the Council.

**Table 1.2** First Cabinet of Independent India (1947)

| Sl. No. | Members                     | Portfolios Held                                                                  |
|---------|-----------------------------|----------------------------------------------------------------------------------|
| 1.      | Jawaharlal Nehru            | Prime Minister; External Affairs and Commonwealth Relations; Scientific Research |
| 2.      | Sardar Vallabhbhai Patel    | Home, Information and Broadcasting; States                                       |
| 3.      | Dr. Rajendra Prasad         | Food and Agriculture                                                             |
| 4.      | Maulana Abul Kalam Azad     | Education                                                                        |
| 5.      | Dr. John Mathai             | Railways and Transport                                                           |
| 6.      | R.K. Shanmugham Chetty      | Finance                                                                          |
| 7.      | Dr. B.R. Ambedkar           | Law                                                                              |
| 8.      | Jagjivan Ram                | Labour                                                                           |
| 9.      | Sardar Baldev Singh         | Defence                                                                          |
| 10.     | Raj Kumari Amrit Kaur       | Health                                                                           |
| 11.     | C.H. Bhabha                 | Commerce                                                                         |
| 12.     | Rafi Ahmed Kidwai           | Communication                                                                    |
| 13.     | Dr. Shyama Prasad Mukherjee | Industries and Supplies                                                          |
| 14.     | V.N. Gadgil                 | Works, Mines and Power                                                           |

<sup>1</sup>The Mughal Emperor, Shah Alam, granted 'Diwani' to the Company after its victory in the Battle of Buxar (1764).

<sup>2</sup>It was introduced in the British Parliament by the then Prime Minister, William Pitt.

<sup>3</sup>At that time, the Civil Services of the company were classified into covenanted civil services (higher civil services) and uncovenanted civil services (lower civil services). The former was created by a law of the Company, while the later was created otherwise.

<sup>4</sup>M. V. Pylee, *Constitutional History of India*, S. Chand & Company Ltd., New Delhi, Fifth Edition, 2011, p. 16.

<sup>5</sup>The system of Budget was introduced in British India in 1860.

<sup>6</sup>V. N. Shukla, *The Constitution of India*, Eastern Book Company, Tenth Edition, 2001, p. A-10.

<sup>7</sup>The declaration thus stated: 'The policy of His Majesty's Government is that of the increasing association of Indians in every branch of the administration, and the gradual development of self-government institutions, with a view to the progressive realisation of responsible government in India as an integral part of the British Empire'.

<sup>8</sup>This was done on the recommendation of the Lee Commission on Superior Civil Services in India (1923–24).

<sup>9</sup>The Indian Independence Bill was introduced in the British Parliament on July 4, 1947 and received the Royal Assent on July 18, 1947. The act came into force on August 15, 1947.

<sup>10</sup>The boundaries between the two Dominions were determined by a Boundary Commission headed by Radcliff. Pakistan included the provinces of West Punjab, Sind, Baluchistan, East Bengal, North-Western Frontier Province and the district of Sylhet in Assam. The referendum in the North-Western Frontier Province and Sylhet was in favour of Pakistan.

## CHAPTER 2 Making of the Constitution

### Demand for a Constituent Assembly

It was in 1934 that the idea of a Constituent Assembly for India was put forward for the first time by M.N. Roy, a pioneer of the communist movement in India. In 1935, the Indian National Congress (INC), for the first time, officially demanded a Constituent Assembly to frame the Constitution of India. In 1938, Jawaharlal Nehru, on behalf of the INC declared that 'the Constitution of free India must be framed, without outside interference, by a Constituent Assembly elected on the basis of adult franchise'. This view was endorsed and reiterated by the INC by passing a resolution in 1939.

The demand was finally accepted in principle by the British Government in what is known as the 'August Offer' of 1940. In 1942, Sir Stafford Cripps, a Member of the Cabinet, came to India with a draft proposal of the British Government on the framing of an independent Constitution to be adopted after World War II. The Cripps Proposals were rejected by the Muslim League, which wanted India to be divided into two autonomous states with two separate Constituent Assemblies. Finally, a Cabinet Mission<sup>1</sup> was sent to India. While it rejected the idea of two Constituent Assemblies, it put forth a scheme for the Constituent Assembly which more or less satisfied the Muslim League.

### COMPOSITION OF THE CONSTITUENT ASSEMBLY

The Constituent Assembly was constituted in November 1946 under the scheme formulated by the Cabinet Mission Plan.

#### *The features of the scheme were:*

1. The total strength of the Constituent Assembly was to be 389. Of these, 296 seats were to be allotted to British India and 93 seats to the princely states. Out of 296 seats allotted to British India, 292 members were to be drawn from the eleven governors' provinces<sup>2</sup> and four from the four Chief Commissioners' provinces<sup>3</sup>, one from each.



2. Each province and princely state (or group of states in case of small states) were to be allotted seats in proportion to their respective population. Roughly, one seat was to be allotted for every million population.
3. Seats allocated to each British province were to be divided among the three principal communities—Muslims, Sikhs and General (all except Muslims and Sikhs), in proportion to their population.
4. The representatives of each community were to be elected by members of that community in the provincial legislative assembly and voting was to be by the method of proportional representation by means of single transferable vote.

5. The representatives of the princely states were to be nominated by the heads of the princely states.

It is, thus, clear that the Constituent Assembly was to be a partly elected and partly nominated body. Moreover, the members were to be indirectly elected by the members of the provincial assemblies, who themselves were elected on a limited franchise<sup>4</sup>.

The elections to the Constituent Assembly (for 296 seats allotted to the British Indian Provinces) were held in July–August 1946. The Indian National Congress won 208 seats, the Muslim League 73 seats and the small groups and independents got the remaining 15 seats. However, the 93 seats allotted to the princely states were not filled as they decided to stay away from the Constituent Assembly.

Although the Constituent Assembly was not directly elected by the people of India on the basis of adult franchise, the Assembly comprised representatives of all sections of Indian society—Hindus, Muslims, Sikhs, Parsis, Anglo-Indians, Indian Christians, SCs, STs including women of all these sections. The Assembly included all important personalities of India at that time, with the exception of Mahatma Gandhi.

The allocation of seats in the Constituent Assembly, the results of the elections to the Constituent Assembly, the community-wise representation in the Constituent Assembly and the women members of the Constituent Assembly are mentioned in [Tables 2.1, 2.2, 2.3](#) and [2.4](#) respectively.

### WORKING OF THE CONSTITUENT ASSEMBLY

The Constituent Assembly held its first meeting on December 9, 1946. The Muslim League boycotted the meeting and insisted on a separate state of Pakistan. The meeting was, thus, attended by only 207 members. *Dr. Sachchidananda Sinha, the oldest member, was elected as the temporary Chairman of the Assembly, following the French practice.*

On December 11, 1946, Dr. Rajendra Prasad was elected as the permanent Chairman (President) of the Assembly. Similarly, on January 25, 1947, H.C. Mukherjee was elected as the Vice-President of the Assembly. Later on, the Assembly resolved to have two Vice-Presidents. Accordingly, on July 16, 1947, V. T. Krishnamachari was elected as the second Vice-President of the Assembly.



### Objectives Resolution

On December 13, 1946, Jawaharlal Nehru moved the historic 'Objectives Resolution' in the Assembly. It laid down the fundamentals and philosophy of the constitutional structure. It read:

1. This Constituent Assembly declares its firm and solemn resolve to proclaim India as an Independent Sovereign Republic and to draw up for her future governance a Constitution
2. Wherein the territories that now comprise British India, the territories that now form the Indian States and such other parts of India as are outside India and the States as well as other territories as are willing to be constituted into the independent sovereign India, shall be a Union of them all; and
3. Wherein the said territories, whether with their present boundaries or with such others as may be determined by the Constituent Assembly and thereafter according to the law of the

Constitution, shall possess and retain the status of autonomous units together with residuary powers and exercise all powers and functions of Government and administration save and except such powers and functions as are vested in or assigned to the Union or as are inherent or implied in the Union or resulting therefrom; and

4. Wherein all power and authority of the sovereign independent India, its constituent parts and organs of Government are derived from the people; and
5. Wherein shall be guaranteed and secured to all the people of India justice, social, economic and political; equality of status of opportunity, and before the law; freedom of thought, expression, belief, faith, worship, vocation, association and action, subject to law and public morality; and
6. Wherein adequate safeguards shall be provided for minorities, backward and tribal areas, and depressed and other backward classes; and
7. Whereby shall be maintained the integrity of the territory of the Republic and its sovereign rights on land, sea and air according to justice and the law of civilized nations; and
8. This ancient land attains its rightful and honoured place in the world and makes its full and willing contribution to the promotion of world peace and the welfare of mankind."

This Resolution was unanimously adopted by the Assembly on January 22, 1947. It influenced the eventual shaping of the constitution through all its subsequent stages. Its modified version forms the Preamble of the present Constitution.



### Changes by the Independence Act

The representatives of the princely states, who had stayed away from the Constituent Assembly, gradually joined it. On April 28, 1947, representatives of the six states<sup>5</sup> were part of the Assembly. After the acceptance of the Mountbatten Plan of June 3, 1947, for the partition of the country, the representatives of most of the other princely states took their seats in the Assembly. The members of the Muslim League from the Indian Dominion also entered the Assembly.

The Indian Independence Act of 1947 made the following three changes in the position of the Assembly:

1. The Assembly was made a fully sovereign body, which could frame any Constitution it pleased. The act empowered the Assembly to abrogate or alter any law made by the British Parliament in relation to India.
2. The Assembly also became a legislative body. In other words, two separate functions were assigned to the Assembly, that is, making of the Constitution for free India and enacting of ordinary laws for the country. These two tasks were to be performed on separate days. Thus, the Assembly became the first Parliament of free India (Dominion Legislature). Whenever the Assembly met as the Constituent body it was chaired by Dr. Rajendra Prasad and when it met as the legislative body<sup>6</sup>, it was chaired by G.V. Mavlankar. These two functions continued till November 26, 1949, when the task of making the Constitution was over.
3. The Muslim League members (hailing from the areas<sup>7</sup> included in the Pakistan) withdrew from the Constituent Assembly for India. Consequently, the total strength of the Assembly came down

to 299 as against 389 originally fixed in 1946 under the Cabinet Mission Plan. The strength of the Indian provinces (formerly British Provinces) was reduced from 296 to 229 and those of the princely states from 93 to 70. The state-wise membership of the Assembly as on December 31, 1947, is shown in [Table 2.5](#).



### Other Functions Performed

In addition to the making of the Constitution and enacting of ordinary laws, the Constituent Assembly also performed the following functions:

1. It ratified India's membership of the Commonwealth in May 1949.
2. It adopted the national flag on July 22, 1947.
3. It adopted the national anthem on January 24, 1950.
4. It adopted the national song on January 24, 1950.
5. It elected Dr. Rajendra Prasad as the first President of India on January 24, 1950.

In all, the Constituent Assembly had 11 sessions over two years, 11 months and 18 days. The Constitution-makers had gone through the Constitutions of about 60 countries, and the Draft Constitution was considered for 114 days. The total expenditure incurred on making the Constitution amounted to ₹64 lakh.

On January 24, 1950, the Constituent Assembly held its final session. It, however, did not end, and continued as the provisional parliament of India from January 26, 1950, till the formation of new Parliament<sup>8</sup> after the first general elections in 1951–52.

The complete list of the sessions of the Constituent Assembly is given in [Table 2.6](#).

### COMMITTEES OF THE CONSTITUENT ASSEMBLY

The Constituent Assembly appointed a number of committees to deal with different tasks of constitution-making. Out of these, eight were major committees and the others were minor committees. The names of these committees and their Chairman are given below:



### Major Committees

1. Union Powers Committee – Jawaharlal Nehru
2. Union Constitution Committee – Jawaharlal Nehru
3. Provincial Constitution Committee – Sardar Patel
4. Drafting Committee – Dr. B.R. Ambedkar
5. Advisory Committee on Fundamental Rights, Minorities and Tribal and Excluded Areas – Sardar Patel. This committee had the following five sub-committees:

- (a) Fundamental Rights Sub-Committee – J.B. Kripalani
- (b) Minorities Sub-Committee – H.C. Mukherjee
- (c) North-East Frontier Tribal Areas and Assam Excluded & Partially Excluded Areas Sub-Committee – Gopinath Bardoloi
- (d) Excluded and Partially Excluded Areas (other than those in Assam) Sub-Committee – A.V. Thakkar
- (e) North-West Frontier Tribal Areas Sub-Committee<sup>8a</sup>

- 6. Rules of Procedure Committee – Dr. Rajendra Prasad
- 7. States Committee (Committee for Negotiating with States) – Jawaharlal Nehru
- 8. Steering Committee – Dr. Rajendra Prasad



#### **Minor Committees**

- 1. Finance and Staff Committee – Dr. Rajendra Prasad
- 2. Credentials Committee – Alladi Krishnaswami Ayyar
- 3. House Committee – B. Pattabhi Sitaramayya
- 4. Order of Business Committee – Dr. K.M. Munshi
- 5. Ad-hoc Committee on the National Flag – Dr. Rajendra Prasad
- 6. Committee on the Functions of the Constituent Assembly – G.V. Mavalankar
- 7. Ad-hoc Committee on the Supreme Court – S. Varadachari (Not an Assembly Member)
- 8. Committee on Chief Commissioners' Provinces – B. Pattabhi Sitaramayya
- 9. Expert Committee on the Financial Provisions of the Union Constitution – Nalini Ranjan Sarkar (Not an Assembly Member)
- 10. Linguistic Provinces Commission – S.K. Dar (Not an Assembly Member)
- 11. Special Committee to Examine the Draft Constitution – Jawaharlal Nehru
- 12. Press Gallery Committee – Usha Nath Sen
- 13. Ad-hoc Committee on Citizenship – S. Varadachari (Not an Assembly Member)



#### **Drafting Committee**

Among all the committees of the Constituent Assembly, the most important committee was the Drafting Committee set up on August 29, 1947. It was this committee that was entrusted with the task of preparing a draft of the new Constitution. It consisted of seven members. They were:

1. Dr. B.R. Ambedkar (*Chairman*)
2. N. Gopalaswamy Ayyangar
3. Alladi Krishnaswamy Ayyar
4. Dr. K.M. Munshi
5. Syed Mohammad Saadullah
6. N. Madhava Rau (He replaced B.L. Mitter who resigned due to ill-health)
7. T.T. Krishnamachari (He replaced D.P. Khaitan who died in 1948)

The Drafting Committee, after taking into consideration the proposals of the various committees, prepared the first draft of the Constitution of India, which was published in February, 1948. The people of India were given eight months to discuss the draft and propose amendments. In light of the public comments, criticisms and suggestions, the Drafting Committee prepared a second draft, which was published in October, 1948.

The Drafting Committee took less than six months to prepare its draft. In all it sat only for 141 days.

### **ENACTMENT OF THE CONSTITUTION**

Dr. B.R. Ambedkar introduced the final draft of the Constitution in the Assembly on November 4, 1948 (first reading). The Assembly had a general discussion on it for five days (till November 9, 1948).

The second reading (clause by clause consideration) started on November 15, 1948, and ended on October 17, 1949. During this stage, as many as 7653 amendments were proposed and 2473 were actually discussed in the Assembly.

The third reading of the draft started on November 14, 1949. Dr. B.R. Ambedkar moved a motion—‘the Constitution as settled by the Assembly be passed’. The motion on Draft Constitution was declared as passed on November 26, 1949, and received the signatures of the members and the president. Out of a total 299 members of the Assembly, only 284 were actually present on that day and signed the Constitution. This is also the date mentioned in the Preamble as the date on which the people of India in the Constituent Assembly adopted, enacted and gave to themselves this Constitution.

**The Constitution as adopted on November 26, 1949, contained a Preamble, 395 Articles and 8 Schedules.** The Preamble was enacted after the entire Constitution was already enacted.

Dr. B.R. Ambedkar, the then Law Minister, piloted the Draft Constitution in the Assembly. He took a very prominent part in the deliberations of the Assembly. He was known for his logical, forceful and persuasive arguments on the floor of the Assembly. He is recognised as the ‘Father of the Constitution of India’. This brilliant writer, constitutional expert and undisputed leader of the Scheduled Castes is also known as the ‘chief architect of the Constitution of India’.

On November 19, 2015, the Government of India has decided to celebrate the November 26 of every year as the “Constitution Day” (“Samvidhan Divas”) to promote constitutional values among citizens.

### **ENFORCEMENT OF THE CONSTITUTION**

Some provisions of the Constitution pertaining to citizenship, elections, provisional parliament, temporary and transitional provisions, and short title contained in Articles 5, 6, 7, 8, 9, 60, 324, 366, 367, 379, 380, 388, 391, 392 and 393 came into force on November 26, 1949, itself.

The remaining provisions (the major part) of the Constitution came into force on January 26, 1950. This day is referred to in the Constitution as the 'date of its commencement', and celebrated as the Republic Day.

January 26 was specifically chosen as the 'date of commencement' of the Constitution because of its historical importance. It was on this day in 1930 that *Purna Swaraj* day was celebrated, following the resolution of the Lahore Session (December 1929) of the INC.

With the commencement of the Constitution, the Indian Independence Act of 1947 and the Government of India Act of 1935, with all enactments amending or supplementing the latter Act, were repealed. The Abolition of Privy Council Jurisdiction Act (1949) was however continued.

### EXPERTS COMMITTEE OF THE CONGRESS

While elections to the Constituent Assembly were still in progress, on July 8, 1946, the Congress Party (Indian National Congress) appointed an Experts Committee for the purpose of preparing material for the Constituent Assembly. This committee consisted of the following members<sup>8b</sup>:

1. Jawaharlal Nehru (Chairman)
2. M. Asaf Ali
3. K.M. Munshi
4. N. Gopalaswami Ayyangar
5. K.T. Shah
6. D.R. Gadgil
7. Humayun Kabir
8. K. Santhanam

Later, on the Chairman's proposal, it was resolved that Krishna Kripalani be co-opted as member and convener of the committee.

The committee had two sittings, the first at New Delhi from July 20 to 22, 1946, and the second at Bombay from August 15 to 17, 1946.

Apart from a number of notes prepared by its members, the committee discussed the procedure to be adopted by the Constituent Assembly, the question of the appointment of various committees and the draft of a resolution on the objectives of the constitution to be moved during the first session of the Constituent Assembly.<sup>8c</sup>

On the role played by this committee in the making of the Constitution, Granville Austin, an American constitutional expert, observed: "It was the Congress Experts Committee that set India on the road to her present Constitution. The committee members, working within the framework of the Cabinet

Mission Scheme, made general suggestions about autonomous areas, the powers of provincial Governments and the Centre, and about such issues as the princely states and the amending power. They also drafted a resolution, closely resembling the Objectives Resolution”.<sup>8d</sup>

### CRITICISM OF THE CONSTITUENT ASSEMBLY

The critics have criticised the Constituent Assembly on various grounds. These are as follows:

1. **Not a Representative Body:** The critics have argued that the Constituent Assembly was not a representative body as its members were not directly elected by the people of India on the basis of universal adult franchise.
2. **Not a Sovereign Body:** The critics maintained that the Constituent Assembly was not a sovereign body as it was created by the proposals of the British Government. Further, they said that the Assembly held its sessions with the permission of the British Government.
3. **Time Consuming:** According to the critics, the Constituent Assembly took an unduly long time to make the Constitution. They stated that the framers of the American Constitution took only four months to complete their work. In this context, Naziruddin Ahmed, a member of the Constituent Assembly, coined a new name for the Drafting Committee to show his contempt for it. He called it a “**Drifting Committee**”.

The time taken by the framers of other constitutions is given in [Table 2.7](#).

4. **Dominated by Congress:** The critics charged that the Constituent Assembly was dominated by the Congress party. In this context, Granville Austin, an American constitutional expert, remarked: “The Constituent Assembly was a one-party body in an essentially one-party country. The Assembly was the Congress and the Congress was India.”<sup>9</sup>
5. **Lawyer–Politician Domination:** It is also maintained by the critics that the Constituent Assembly was dominated by lawyers and politicians. They pointed out that other sections of the society were not sufficiently represented. This, to them, is the main reason for the bulkiness and complicated language of the Constitution.
6. **Dominated by Hindus:** According to some critics, the Constituent Assembly was a Hindu dominated body. Lord Viscount Simon called it ‘a body of Hindus’. Similarly, Winston Churchill commented that the Constituent Assembly represented ‘only one major community in India’.

### IMPORTANT FACTS

1. The elephant was adopted as the symbol (seal) of the Constituent Assembly.
2. Sir B.N. Rau was appointed as the constitutional advisor (Legal Advisor) to the Constituent Assembly.
3. H.V.R. Iyengar was the Secretary to the Constituent Assembly.
4. S.N. Mukherjee was the chief draftsman of the constitution in the Constituent Assembly.
5. Prem Behari Narain Raizada was the calligrapher of the Indian Constitution. The original constitution was handwritten by him in a flowing italic style.

6. The original version was beautified and decorated by artists from Shantiniketan including Nand Lal Bose and Beohar Rammanohar Sinha.
7. Beohar Rammanohar Sinha illuminated, beautified and ornamented the original Preamble calligraphed by Prem Behari Narain Raizada.
8. The calligraphy of the Hindi version of the original constitution was done by Vasant Krishan Vaidya and elegantly decorated and illuminated by Nand Lal Bose.

### HINDI TEXT OF THE CONSTITUTION

Originally, the Constitution of India did not make any provision with respect to an authoritative text of the Constitution in the Hindi language. Later, a provision in this regard was made by the 58th Constitutional Amendment Act of 1987. This amendment inserted a new Article 394-A in the last part of the Constitution i.e., Part XXII. This article contains the following provisions:

1. The President shall cause to be published under his authority:

(i) The translation of the Constitution in Hindi language. The modifications which are necessary to bring it in conformity with the language, style and terminology adopted in the authoritative texts of the Central Acts in Hindi can be made in it. All the amendments of the Constitution made before such publication should be incorporated in it.

(ii) The translation in Hindi of every amendment of the constitution made in English.

2. The translation of the Constitution and its every amendment published shall be construed to have the same meaning as the original text in English. If any difficulty arises in this matter, the President shall cause the Hindi text to be revised suitably.
3. The translation of the Constitution and its every amendment published shall be deemed to be, for all purposes, its authoritative text in Hindi.

**Table 2.1** Allocation of seats in the Constituent Assembly of India (1946)

| Sl. No. | Areas                              | Seats |
|---------|------------------------------------|-------|
| 1.      | British Indian Provinces (11)      | 292   |
| 2.      | Princely States (Indian States)    | 93    |
| 3.      | Chief Commissioners' Provinces (4) | 4     |
|         | Total                              | 389   |

**Table 2.2** Results of the Elections to the Constituent Assembly (July–August 1946)

| Sl. No. | Name of the Party           | Seats won |
|---------|-----------------------------|-----------|
| 1.      | Congress                    | 208       |
| 2.      | Muslim League               | 73        |
| 3.      | Unionist Party              | 1         |
| 4.      | Unionist Muslims            | 1         |
| 5.      | Unionist Scheduled Castes   | 1         |
| 6.      | Krishak – Praja Party       | 1         |
| 7.      | Scheduled Castes Federation | 1         |
| 8.      | Sikhs (Non-Congress)        | 1         |
| 9.      | Communist Party             | 1         |
| 10.     | Independents                | 8         |
|         | Total                       | 296       |

**Table 2.3** Community-wise Representation in the Constituent Assembly (1946)

| Sl. No. | Community         | Strength |
|---------|-------------------|----------|
| 1.      | Hindus            | 163      |
| 2.      | Muslims           | 80       |
| 3.      | Scheduled Castes  | 31       |
| 4.      | Indian Christians | 6        |

| Sl. No. | Community       | Strength |
|---------|-----------------|----------|
| 5.      | Backward Tribes | 6        |
| 6.      | Sikhs           | 4        |
| 7.      | Anglo-Indians   | 3        |
| 8.      | Parsees         | 3        |
|         | Total           | 296      |

**Table 2.4** Women Members of the Constituent Assembly

| Sl. No. | Name                 | Constituency                |
|---------|----------------------|-----------------------------|
| 1.      | Ammu Swaminathan     | Madras/General              |
| 2.      | Annie Mascarene      | Travancore and Cochin Union |
| 3.      | Begum Aizaz Rasul    | United Provinces/Muslim     |
| 4.      | Dakshayani Velayudan | Madras/General              |
| 5.      | G. Durgabai          | Madras/General              |
| 6.      | Hansa Mehta          | Bombay/General              |
| 7.      | Kamla Chaudhri       | United Provinces/General    |
| 8.      | Leela Ray            | West Bengal/General         |
| 9.      | Malati Chowdhury     | Orissa/General              |
| 10.     | Purnima Banerji      | United Provinces/General    |

| Sl. No. | Name                 | Constituency                        |
|---------|----------------------|-------------------------------------|
| 11.     | Rajkumari Amrit Kaur | Central Provinces and Berar/General |
| 12.     | Renuka Ray           | West Bengal/General                 |
| 13.     | Sarojini Naidu       | Bihar/General                       |
| 14.     | Sucheta Kripalani    | United Provinces/General            |
| 15.     | Vijayalakshmi Pandit | United Provinces/General            |

**Note:** In total, the Constituent Assembly had 15 women members.

**Source:** Selected Speeches of Women Members of the Constituent Assembly, Rajya Sabha Secretariat, 2012, page (ix).

**Table 2.5** State-wise Membership of the Constituent Assembly of India as on December 31, 1947

|           | Sl. No.                                 | Name             | No. of Members |
|-----------|-----------------------------------------|------------------|----------------|
| <b>A.</b> | <b>Provinces (Indian Provinces)—229</b> |                  |                |
|           | 1.                                      | Madras           | 49             |
|           | 2.                                      | Bombay           | 21             |
|           | 3.                                      | West Bengal      | 19             |
|           | 4.                                      | United Provinces | 55             |
|           | 5.                                      | East Punjab      | 12             |
|           | 6.                                      | Bihar            | 36             |
|           | 7.                                      | C.P. and Berar   | 17             |

|           | Sl. No.                                   | Name          | No. of Members |
|-----------|-------------------------------------------|---------------|----------------|
|           | 8.                                        | Assam         | 8              |
|           | 9.                                        | Orissa        | 9              |
|           | 10.                                       | Delhi         | 1              |
|           | 11.                                       | Ajmer-Merwara | 1              |
|           | 12.                                       | Coorg         | 1              |
| <b>B.</b> | <b>Indian States (Princely States)—70</b> |               |                |
|           | 1.                                        | Alwar         | 1              |
|           | 2.                                        | Baroda        | 3              |
|           | 3.                                        | Bhopal        | 1              |
|           | 4.                                        | Bikaner       | 1              |
|           | 5.                                        | Cochin        | 1              |
|           | 6.                                        | Gwalior       | 4              |
|           | 7.                                        | Indore        | 1              |
|           | 8.                                        | Jaipur        | 3              |
|           | 9.                                        | Jodhpur       | 2              |
|           | 10.                                       | Kolhapur      | 1              |
|           | 11.                                       | Kotah         | 1              |

|  | Sl. No. | Name                                                         | No. of Members |
|--|---------|--------------------------------------------------------------|----------------|
|  | 12.     | Mayurbhanj                                                   | 1              |
|  | 13.     | Mysore                                                       | 7              |
|  | 14.     | Patiala                                                      | 2              |
|  | 15.     | Rewa                                                         | 2              |
|  | 16.     | Travancore                                                   | 6              |
|  | 17.     | Udaipur                                                      | 2              |
|  | 18.     | Sikkim and Cooch Behar Group                                 | 1              |
|  | 19.     | Tripura, Manipur and Khasi States Group                      | 1              |
|  | 20.     | U.P. States Group                                            | 1              |
|  | 21.     | Eastern Rajputana States Group                               | 3              |
|  | 22.     | Central India States Group (including Bundelkhand and Malwa) | 3              |
|  | 23.     | Western India States Group                                   | 4              |
|  | 24.     | Gujarat States Group                                         | 2              |
|  | 25.     | Deccan and Madras States Group                               | 2              |
|  | 26.     | Punjab States Group                                          | 3              |
|  | 27.     | Eastern States Group I                                       | 4              |
|  | 28.     | Eastern States Group II                                      | 3              |

|  | Sl. No. | Name                   | No. of Members |
|--|---------|------------------------|----------------|
|  | 29.     | Residuary States Group | 4              |
|  |         | Total                  | 299            |

**Table 2.6** Sessions of the Constituent Assembly at a Glance

| Sessions         | Period                           |
|------------------|----------------------------------|
| First Session    | December 9–23, 1946              |
| Second Session   | January 20–25, 1947              |
| Third Session    | April 28–May 2, 1947             |
| Fourth Session   | July 14–31, 1947                 |
| Fifth Session    | August 14–30, 1947               |
| Sixth Session    | January 27, 1948                 |
| Seventh Session  | November 4, 1948–January 8, 1949 |
| Eighth Session   | May 16–June 16, 1949             |
| Ninth Session    | July 30–September 18, 1949       |
| Tenth Session    | October 6–17, 1949               |
| Eleventh Session | November 14–26, 1949             |

**Note:** The Assembly met once again on January 24, 1950, when the members appended their signatures to the Constitution of India.

**Table 2.7** Time Taken by the Framers of Other Constitutions<sup>[10](#)</sup>

| Sl. No. | Country      | No. of Articles | Working Period                     | Time Taken                 |
|---------|--------------|-----------------|------------------------------------|----------------------------|
| 1       | U.S.A.       | 7               | May 25, 1787 to September 17, 1787 | Less than 4 months         |
| 2       | Canada       | 147             | October 10, 1864 to March 1867     | About 2 years and 6 months |
| 3       | Australia    | 128             | March 1891 to July 9, 1900         | About 9 years              |
| 4       | South Africa | 153             | October 1908 to September 20, 1909 | 1 year                     |

**Table 2.8** Articles Related to Short Title, Commencement, Hindi Text and Repeals at a Glance

| Article No. | Subject Matter                       |
|-------------|--------------------------------------|
| 393         | Short title                          |
| 394         | Commencement                         |
| 394A        | Authoritative text in Hindi language |
| 395         | Repeals                              |

<sup>1</sup>The Cabinet Mission consisting of three members (Lord Pethick Lawrence, Sir Stafford Cripps and A.V. Alexander) arrived in India on March 24, 1946. The Cabinet Mission published its plan on May 16, 1946.

<sup>2</sup>These include Madras, Bombay, UP, Bihar, Central Provinces, Orissa, Punjab, NWFP, Sindh, Bengal and Assam.

<sup>3</sup>These include Delhi, Ajmer–Merwara, Coorg and British Baluchistan.

<sup>4</sup>The Government of India Act of 1935 granted limited franchise on the basis of tax, property and other qualifications.

<sup>5</sup>These include Baroda, Bikaner, Jaipur, Patiala, Rewa and Udaipur.

<sup>6</sup>For the first time, the Constituent Assembly met as Dominion Legislature on November 17, 1947 and elected G.V. Mavalankar as its speaker.

<sup>7</sup>These are West Punjab, East Bengal, NWFP, Sindh, Baluchistan and Sylhet District of Assam. A separate Constituent Assembly was set up for Pakistan.

<sup>8</sup>The Provisional Parliament ceased to exist on April 17, 1952. The first elected Parliament with the two Houses came into being in May 1952.

<sup>8a</sup>One of the political consequences of the British Government's statement of June 3, 1947, was that following a referendum, the North-West Frontier Province and Baluchistan became part of the territory of the Dominion of Pakistan and as a result the tribal areas in this region became a concern of that Dominion. The Sub-Committee on the Tribal Areas in the North-West Frontier Province and Baluchistan was not therefore called upon to function on behalf of the Constituent Assembly of India. (B. Shiva Rao, *The Framing of India's Constitution: Select Documents*, Volume III, p. 681.)

The members of this Sub-Committee were: Khan Abdul Ghaffar Khan, Khan Abdul Samad Khan and Mehr Chand Khanna. The information about the Chairman is not found.

<sup>8b</sup>B. Shiva Rao, *The Framing of India's Constitution*, Select Documents, Volume 1, p. 326.

<sup>8c</sup>*Ibid.*

<sup>8d</sup>Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, Oxford, 1966, pp. 32–33.

<sup>9</sup>*Ibid.*, p. 8.

<sup>10</sup>J.R. Siwach, *Dynamics of Indian Government and Politics*, Sterling Publishers Private Limited, Second Edition, 1990, p. 10.